

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ANTONIO DIAZ,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL VECCHI, Shield #17615, POLICE OFFICER
RODRIGUEZ, Shield #8909, POLICE OFFICER
MASCETTI, Shield #16396, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of
the New York City Police Department,

Plaintiff designates New York
County as the place of trial.

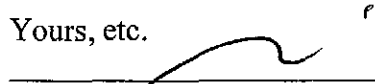
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 26, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
P.O. Michael Vecchi, Shield #17615, 30th Precinct, 451 W 151st St, New York, NY 10031
P.O. Rodriguez, Shield #8909, 28th Precinct, 2271-89 8th Ave., New York, NY, 10027
P.O. Mascetti, Shield #16396, 30th Precinct, 451 W 151st St, New York, NY 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ANTONIO DIAZ,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL VECCHI, Shield #17615, POLICE OFFICER
RODRIGUEZ, Shield #8909, POLICE OFFICER
MASCETTI, Shield #16396, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, ANTONIO DIAZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 12, 2011, at approximately 5:30 a.m., plaintiff, Antonio Diaz, while lawfully driving a vehicle at the intersection of 143rd Street and Broadway, New York, New York, was subject to an unlawful search, detention, false imprisonment, false arrest, and subsequently subject to an unlawful malicious prosecution by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, and caused the unjustifiable arrest and malicious prosecution of plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ANTONIO DIAZ is a resident of the County of Queens, State of New York.

3. Police Officer MICHAEL VECCHI, Shield #17615, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer MICHAEL VECCHI, Shield #17615, is and was at all times relevant herein, assigned to the 30th Precinct.

5. Police Officer MICHAEL VECCHI, Shield #17615, is being sued in his individual and official capacity.

6. Police Officer RODRIGUEZ, Shield #8909, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Police Officer RODRIGUEZ, Shield #8909, is and was at all times relevant herein, assigned to the 28th Precinct.

8. Police Officer RODRIGUEZ, Shield #8909, is being sued in his individual and official capacity.

9. Police Officer MASCETTI, Shield #16396, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Police Officer MASCETTI, Shield #16396, is and was at all times relevant herein, assigned to the 28th Precinct.

11. Police Officer MASCETTI, Shield #16396, is being sued in his individual and official capacity.

12. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On March 12, 2011 at approximately 5:30 a.m., Plaintiff ANTONIO DIAZ was lawfully driving a vehicle in the vicinity of the intersection of 143rd Street and Broadway, New York, New York.

20. Plaintiff ANTONIO DIAZ was stopped at a red light when a marked New York Police Department police squad car pulled up behind him.

21. When the light changed from red to green, Plaintiff ANTONIO DIAZ drove straight, and immediately the defendant police officers turned on their lights and sirens and pulled over Plaintiff ANTONIO DIAZ.

22. Two of the Defendant Police Officers then exited their car and approached Plaintiff Antonio Diaz' vehicle, one on the driver's side, and the other on the passenger's side.

23. The defendant police officer that approached on the driver's side asked Plaintiff ANTONIO DIAZ what he was doing and where he was going.

24. Plaintiff ANTONIO DIAZ answered that he was looking for parking and that he was going home.

25. The defendant police officer then asked Plaintiff ANTONIO DIAZ whether he had been drinking that night.

26. Plaintiff ANTONIO DIAZ responded that he did not drink anything containing alcohol.

27. Defendant police officers then unlawfully ordered Plaintiff ANTONIO DIAZ to step out of the car and to show them identification.

28. Plaintiff ANTONIO DIAZ complied with the order, stepped out of the vehicle, and handed the defendant police officer his driver's license.

29. Then defendant police officers ordered Plaintiff ANTONIO DIAZ to go to the rear of the vehicle, and ordered him to take a breathalyzer test.

30. Plaintiff ANTONIO DIAZ complied with their order to go to the back of the vehicle, and agreed to take a breathalyzer test.

31. Plaintiff ANTONIO DIAZ completed the breathalyzer test two or three times.

32. Each time Plaintiff ANTONIO DIAZ took the breathalyzer test, the breathalyzer showed that plaintiff's blood alcohol content was 0.00%.

33. At no time were any guns, drugs, or contraband found in in the vehicle, or on plaintiff's person, or in plaintiff's possession, custody, or control.

34. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

35. At no time did plaintiff become loud or boisterous, or engage in any fighting, or engage in any violent, tumultuous, or threatening behavior.

36. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

37. Nevertheless, defendant police officers unlawfully handcuffed and arrested plaintiff and transported him to the highway patrol precinct.

38. Once they arrived at the highway patrol precinct, defendant police officers ordered Plaintiff ANTONIO DIAZ to complete a walking and coordination test.

39. Plaintiff ANTONIO DIAZ passed the walking and coordination test without a problem.

40. Next, defendant police officers ordered Plaintiff ANTONIO DIAZ to take another breathalyzer test.

41. Defendant police officers ordered Plaintiff ANTONIO DIAZ to take the breathalyzer test at the highway patrol precinct.

42. The results of each breathalyzer test showed that Plaintiff ANTONIO DIAZ had a blood alcohol content of 0.00%.

43. At all times, Plaintiff ANTONIO DIAZ complied with the orders and requests of the defendant police officers.

44. Nevertheless, Plaintiff ANTONIO DIAZ was then transported from the highway patrol precinct to the 30th precinct for arrest processing.

45. The defendant police officers falsely wrote in their police reports that Plaintiff ANTONIO DIAZ had refused to take any of the six breathalyzer tests.

46. As a result of the defendant police officers false statements that Plaintiff ANTONIO DIAZ had refused to take the breathalyzer tests, his driver's license was automatically suspended.

47. At approximately 9 a.m., Plaintiff ANTONIO DIAZ was transported from the 30th Precinct to Manhattan Central Booking.

48. After approximately 27 hours in a holding cell at Manhattan Central Booking, Plaintiff Antonio Diaz was taken before a Judge and arraigned.

49. Plaintiff ANTONIO DIAZ returned to criminal court on four separate occasions for hearings related to the charges arising from his false arrest.

50. Thereafter, on November 17, 2011, the charges against Plaintiff ANTONIO DIAZ were dismissed on motion of the district attorney.

51. The unlawful search, false arrest, false imprisonment, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

52. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop motor vehicle drivers, question them, search their persons and vehicles without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual or the vehicle secreted contraband, evidence, or has a weapon on their person or in the vehicle.

53. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers arrest every motor vehicle driver they suspect of being intoxicated, despite that fact that the driver took a breathalyzer test that showed his or her blood alcohol content was under the legal limit, and regardless of the fact the New York City Police Officers do not find any evidence that the driver had violated any law or ordinance and do not have probable cause or reasonable suspicion to support the belief that the motor vehicle driver have violated any law or ordinance.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

56. As a direct and proximate result of such acts, defendants deprived plaintiffs of her rights under the laws of the State of New York and the United States Constitution.

57. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived plaintiffs of her rights under the laws of the State of New York and the United States Constitution.

61. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Malicious Prosecution

62. Plaintiffs repeat and reallege paragraphs 1 through 61 as if fully set forth herein.

63. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, laws of the State of New York, and New York State common law.

64. Defendants commenced and continued a criminal proceeding against plaintiff.

65. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

66. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned date.

67. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

THIRD CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

70. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

71. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

73. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested.

74. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

75. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Antonio Diaz demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 26, 2013

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

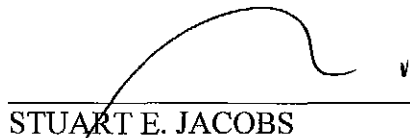
TO: CITY OF NEW YORK, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer MICHAEL VECCHI, Shield #17615, 30th Precinct, 451 W 151st St, New York, NY 10031
Police Officer RODRIGUEZ, Shield #8909, 28th Precinct, 2271-89 8th Ave., New York, NY, 10027
Police Officer MASCETTI, Shield #16396, 30th Precinct, 451 W 151st St, New York, NY 10031

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
March 26, 2013


STUART E. JACOBS